



தமிழ்நாடு தமில்நாடு TAMILNADU

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16-09-2019
RAMCO INSTITUTE OF
TECHNOLOGY
RAJAPALAYAM

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (hereinafter called as the 'MoU') is entered into on this the 11th day of - October- Two Thousand Nineteen,

BETWEEN

Ramco Institute of Technology, North Venganallur Village, Rajapalayam - 626 117, Virudhunagar District, Tamil Nadu, the First Party represented herein by its Head of the Institution Principal (hereinafter referred as 'First Party', the institution which expression, unless excluded by or repugnant to the subject or context shall include its successors - in-office, administrators and assigns).

AND

M.S. Chellamuthu Trust & Research Foundation, 643, K.K. Nagar, Madurai - 625 020, Madurai District, Tamil Nadu, the Second Party, and represented herein by its Executive Director, (hereinafter referred to as "Second Party", company which expression, unless excluded by or repugnant to the subject or context shall include its successors - in-office, administrators and assigns). (First Party and Second Party are hereinafter jointly referred to as 'Parties' and individually as 'Party')

11.08.19



MS Chellamuthu
Trust & Research Foundation
643, K.K. NAGAR, MADURAI - 625 020

WHEREAS:

- A) First Party is a Higher Educational Institution named:

Name of the Institution: Ramco Institute of Technology

Ramco Institute of Technology, (RIT) promoted by Raja Charity Trust, was established during the academic year 2013-14. It is fully supported by the Ramco Group to create quality Engineers for future needs. The Institution is approved by AICTE and is affiliated to Anna University, Chennai. Currently, RIT offers 4-year undergraduate Engineering programmes namely Civil Engineering, Computer Science and Engineering, Electrical and Electronics Engineering, Electronics and Communication Engineering and Mechanical Engineering, and plans to offer postgraduate and research programmes in Engineering and science. The overall management of the Institution is vested with the Governing Council under the able leadership of Shri. P.R. Venketrama Raja, Chairman, RAMCO Group of Industries. The Advisory Committee of the Institute is headed by Prof. M.S. Ananth, former Director of IIT Madras and is ably supported by leading Professors of IIT Madras, Prof.M.S.Palanichamy, former Vice-Chancellor of Tamilnadu Open University and other prominent academicians. The Advisory Committee plays a vital role in recruiting the best faculty, training them, promoting innovative teaching and encouraging research.

- B) First Party & Second Party believe that collaboration and co-operation between themselves will promote more effective use of each of their resources and provide each of them with enhanced opportunities.
- C) The Parties intent to cooperate and focus their efforts on cooperation within area of Mental Health, Education and Research.
- D) Both Parties, being legal entities in themselves desire to sign this MOU for advancing their mutual interest.

03
11.05.19



R. Rajkumar

promoting mental health
MSChellamuthu
Trust & Research Foundation
643, K.K.NAGAR, MADURAI - 625 020

- E) **M.S. Chellamuthu trust & research foundation, 643, K.K. Nagar, Madurai - 625 020**, the Second Party is engaged in the promotion of mental health through holistic mental health care, affordable and accessible to all.
- F) **M.S. Chellamuthu trust & research foundation**, the Second Party is a non-profit organization registered under the Indian Trust Act. It was founded in the year 1992 by Dr.C.Ramasubramanian, Consultant Psychiatrist, Madurai. The Trust is one of the leading organization in the whole of South Tamilnadu, India working primarily in the field of mental health.

NOW THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES SET FORTH IN THIS MOU, THE PARTIES HERE TO AGREE AS FOLLOWS:

CLAUSE 1: CO-OPERATION

- 1.1 Both Parties are united by common interests and objectives and they shall establish channels of communication and co-operation that will promote and advance their respective operations within the **Institution** and its related wings. The Parties shall keep each other informed of potential opportunities and shall share all information that may be relevant to secure additional opportunities for one another.
- 1.2 First Party and Second Party shall cooperate to develop / strengthen the psychosocial competence, mental health competence and mentoring competence of the faculty members of the First Party through continuous training and follow ups.
- 1.3 The general terms of co-operation shall be governed by this MOU. The Parties shall cooperate with each other and shall, as promptly as is reasonably practical, enter into all relevant agreements, deeds and documents (the 'Definitive Documents') as may be required to give effect to the actions contemplated in terms of this MOU. The term of Definitive Documents shall be mutually decided between the Parties. Along with the Definitive Documents, this MOU shall represent the entire understanding as to the subject matter hereof and shall supersede any prior understanding between the Parties on the subject matter hereof.

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R. Rajkumar
promoting mental health
M.S. Chellamuthu
Trust & Research Foundation
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CLAUSE 2: SCOPE OF THE MOU

The general purpose of this MOU is to facilitate cooperation in academics, research and training relating to mental health and other related fields between the parties hereunder based upon the principles of mutual benefit and may include the following general cooperation areas:

- 2.1 **Training:** Second party in consultation with the authorities of the first party shall organize need based training programs for the faculty members and students to strengthen their mental health competence.
- 2.2 **Research:** Both parties shall undertake joint research projects in the areas of mental health and related areas. The students of the first party shall make use of the facilities of the second party in taking up independent research projects that will result in leveraging technology in reducing the mental health gaps in the community.
- 2.3 **Counseling:** Both parties shall jointly run the counseling services in the campus for the benefit of students and faculty members.
- 2.4 **Social Support Mobilization:** Both parties shall focus its efforts on Mental Health Literacy as a key strategy to mobilize social support for the cause of mental health.
- 2.5 Sharing of expertise while conducting seminars, conferences in the areas of mutual interest.
- 2.6 Both Parties to obtain all internal approvals, consents, permissions, and licenses of whatsoever nature required for offering the Programs on the terms specified herein.
- 2.7 There is no financial commitment on the part of the **Ramco Institute of Technology**, the First Party to take up any program mentioned in the MOU. If there is any financial consideration, it will be dealt separately.

CLAUSE 3: INTELLECTUAL PROPERTY

- 3.1 Nothing contained in this MOU shall, by express grant, implication or otherwise, create in either Party any right, title, interest, or license in or to the intellectual property (including but not limited to know-how, inventions, patents, copy rights and designs) of the other Party.

3/16/19



CLAUSE 4: VALIDITY

- 4.1 This Agreement will be valid until it is expressly terminated by either Party on mutually agreed terms, during which period **M.S. Chellamuthu Trust & Research Foundation**, the Second Party, as the case may be, will take effective steps for implementation of this MOU. Any act on the part of **M.S. Chellamuthu Trust & Research Foundation**, the Second Party after termination of this Agreement by way of communication, correspondence etc., shall not be construed as an extension of this MOU.
- 4.2 Both Parties may terminate this MOU upon 30 calendar days' notice in writing. In the event of Termination, both parties have to discharge their obligations.

CLAUSE 5: RELATIONSHIP BETWEEN THE PARTIES

- 5.1 It is expressly agreed that **First Party** and **Second Party** shall act as independent contractors under this MoU and the relationship established under this MOU shall not be construed as a partnership. Neither Party is authorized to use the other Party's name in any way, to make any representations or create any obligation or liability, expressed or implied, on behalf of the other Party, without the prior written consent of the other Party. Neither Party shall have, nor represent itself as having, any authority under the terms of this MoU to make agreements of any kind in the name of or binding upon the other Party, to pledge the other Party's credit, or to extend credit on behalf of the other Party.

[Handwritten signature in green ink]
11.05.19

First Party

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R. Rajkumar

Second Party

Any divergence or difference derived from the interpretation or application of the MoU shall be resolved by arbitration between the parties as per the Arbitration Act, 1996. The place of the arbitration shall be at District Head

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11.05.19



[Handwritten signature in blue ink]
R. Rajkumar

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M.S. Chellamuthu
Trust & Research Foundation
643, K.K. NAGAR, MADURAI - 625 020

Quarters of the First Party. This undertaking is to be construed in accordance with Indian Law with exclusive jurisdiction in the Courts of **Name of City: Rajapalayam.**

AGREED:

For **Ramco Institute of Technology**

For **M.S. Chellamuthu Trust & Research Foundation**

Principal
Authorized Signatory

6/11/19
**Prof. Dr. L. GANESAN Ph.D.,
Principal
Ramco Institute of Technology
Rajapalayam - 626 117.
Tamil Nadu**

R. Rajkumar
Executive Director
Authorized Signatory


**M.S. Chellamuthu
Trust & Research Foundation
643, K.K. NAGAR, MADURAI - 625 020**

Ramco Institute of Technology

M.S. Chellamuthu Trust & Research Foundation

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Witness 1:

S. Rajakumar
11/11/19
**(S. RAJAKUMARAN)
Vice Principal / RIT**

Witness 2:

K. S. Selvaraj
**(K. S. SELVARAJ)
DGM(A) RIT**



Witness 1:

Aruna Anand
11/11/19
**(A. GURU BHARATHY)
Consultant,
MS Chellamuthu Trust & RF**

Witness 2:

S. Tharanya
**(S. THARANYA)
Assistant Professor
MS Chellamuthu Institute**